

25STCV27546 25STCV27546

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Case Number: 25STCV27546 Hearing Date: July 28, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

DANIELLE DUTSMAN,

Plaintiff,

vs.

THE CHEESECAKE FACTORY, INC.,

Defendants.

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CASE NO.: 25STCV27546

[TENTATIVE] ORDER GRANTING MOTION TO COMPEL
ARBITRATION

Dept. 506

8:30 a.m.

July 28, 2026

On September 19, 2025, Plaintiff Danielle Duitsman filed
this action against Defendants The Cheesecake Factory Inc. and Alma Rabago.

The Complaint alleges (1) pregnancy discrimination
in violation of in violation of the Fair Employment and Housing Act ("FEHA"); (2)
disability discrimination in violation of FEHA; (3) failure to accommodate a pregnancy-related
condition in violation of FEHA; (4) failure to engage in the interactive process
in violation of FEHA; (5) retaliation in violation of FEHA; (6) failure to prevent
discrimination, harassment, and retaliation in violation of FEHA; (7) violation
of California's pregnancy disability leave law; (8) wrongful termination in violation
of public policy; (9) intentional infliction of emotional distress; (10) negligent
hiring, supervising, or retention; and (11) failure to provide rest breaks in violation
of the Labor Code.

On March 23, 2026, Defendants filed a
motion to compel arbitration.

DISCUSSION

When seeking to compel arbitration

of a plaintiff's claims, the defendant must allege the existence of an agreement to arbitrate. (Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 219 (Condee).) The burden then shifts to the plaintiff to prove the falsity of the agreement. (Ibid.) After the Court determines that an agreement to arbitrate exists, it then considers objections to its enforceability. (Ibid.)

The Court must grant a petition

to compel arbitration unless the defendant has waived the right to compel arbitration or if there are grounds to revoke the arbitration agreement. (Ibid.; Code Civ. Proc., § 1281.2.) Under California law and the Federal Arbitration Act ("FAA"), an arbitration agreement may be invalid based upon grounds applicable to any contract, including unconscionability, fraud, duress, and public policy. (Sanchez v. Western Pizza Enterprises, Inc. (2009) 172 Cal.App.4th 154, 165-166.)

A. Defendants Have Shown the Existence of
An Arbitration Agreement.

On

May 30, 2021, Plaintiff signed a Mutual Agreement to Arbitrate Claims. (Motion at pp. 5-6; Lambert-Gaffney Decl., Ex. A ["Arbitration Agreement"].) The parties agreed to arbitrate "any and all disputes or claims between the Company and me that arise out of or relate to my recruitment, employment or separation from employment with the Company (currently existing or which may arise in the future), including claims involving and/or against any current or former . . . agent or employee of the Company, . . . whether the disputes or claims arise under common law, in tort, in contract, or pursuant to a statute, regulation, or ordinance now in existence or which may in the future be enacted or recognized, . . . including, but not limited to . . . Claims for wrongful termination of employment, retaliation, violation of public policy, constructive discharge, infliction of emotional distress, . . . discrimination, negligence, . . . , and any other tort or tort-like causes of action relating to or arising from the employment relationship or the formation or termination thereof," as well as other employment claims under state and federal law.

Plaintiff

argues that the motion "has not met its burden of proving by a preponderance of the evidence that an agreement to arbitrate actually exists." (Opposition at p. 7.) Defendants only need to "alleg[e] the existence of a written agreement to arbitrate a controversy." (Code Civ. Proc., § 1281.2; see Condee, supra, 88 Cal.App.4th at p. 219.) They have done

so—and they have provided a copy of the written agreement.

Plaintiff also contends that

she “do[es] not remember signing the alleged arbitration agreement and [she does] not recognize its contents.” (Duitsman Decl.

¶ 16; Opposition at p. 8.) Defendants’ custodian

of records confirms that the Arbitration Agreement was in Plaintiff’s personnel

file. (Lambert-Gaffney Decl. ¶ 5.) Importantly, Plaintiff does not argue that the

written signature on the Arbitration Agreement is not hers. “[A] petitioner is not required

to authenticate an opposing party’s signature on an arbitration agreement as

a preliminary matter in moving for arbitration or in the event the authenticity

of the signature is not challenged.” (Ruiz

v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 846.)

Defendants

have satisfied their burden of showing the existence of an agreement to arbitrate

that covers Plaintiff’s claims.

C. The Arbitration Agreement Satisfies the

Armendariz Factors.

Arbitration

agreements for FEHA claims must (1) provide for neutral arbitrators, (2) provide

for more than minimal discovery, (3) require a written award, (4) provide for all

of the types of relief that would otherwise be available in court, and (5) not require

employees to pay either unreasonable costs or any arbitrators’ fees or expenses

as a condition of access to the arbitration forum. (Armendariz v. Foundation Health Psychcare

Services, Inc. (2000) 24 Cal.4th 83, 102 (Armendariz).) These requirements may apply to non-FEHA employment

claims. (See Pinela v. Neiman Marcus Group,

Inc. (2015) 238 Cal.App.4th 227, 254 [applying the Armendariz factors

in the context of claims under the Labor Code].)

The

Arbitration Agreement provides for arbitration using a neutral arbitrator in accordance

with the Employment Arbitration Rules and Mediation Procedures issued by the American

Arbitration Association. The arbitrator shall

render a written award and opinion with the essential findings and conclusions upon

which the award is based. Discovery shall

be conducted to the extent necessary to adequately arbitrate or defend any claims,

including access to essential documents and witnesses, as determined by the arbitrator. The company will bear the fees and expenses that

are unique to arbitration. Nothing precludes any type of relief that would otherwise be available in court.

Accordingly,
the Arbitration Agreement satisfies Armendariz.

D. The Arbitration Agreement Is Not Invalid
Under the EFAA.

Plaintiff

argues that the federal Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 ("EFAA") invalidates the Arbitration Agreement. (Opposition at pp. 4-7.) Under the EFAA, no predispute arbitration agreement

is valid or enforceable with respect to a case that relates to a sexual assault dispute or a sexual harassment dispute.

(9 U.S.C.A. § 402(a).) "[T]he statute

applies to the entire case, not merely to the sexual assault or sexual harassment claims alleged as a part of the case. It

is significant, moreover, that the statute does not require that the pendant claims arise out of the sexual assault or sexual harassment dispute; it is enough

that the case relates to the sexual assault or sexual harassment claims." (Doe v. Second Street Corp. (2024) 105 Cal.App.5th 552, 577.)

"The

term 'sexual harassment dispute' means a dispute relating to conduct that is alleged

to constitute sexual harassment under applicable Federal, Tribal, or State law." (9 U.S.C.A. § 401(4).) "Both the FEHA and title VII of the Federal Civil

Rights Act [citation] prohibit employers from discharging or otherwise discriminating against a person on the basis of race in compensation, terms, conditions, or privileges

of employment. [Citations.] Although the state and federal antidiscrimination legislation 'differ in some particulars, their objectives are identical, and California

courts have relied upon federal law to interpret analogous provisions of the state statute. [Citations.]" (Clark v. Claremont University Center (1992)

6 Cal.App.4th 639, 662.) Borrowing from federal

law, then, "[u]nwelcome sexual advances, requests for sexual favors, and other verbal

or physical conduct of a sexual nature constitute sexual harassment when (1) submission

to such conduct is made either explicitly or implicitly a term or condition of an

individual's employment, (2) submission to or rejection of such conduct by an individual

is used as the basis for employment decisions affecting such individual, or (3)

such conduct has the purpose or effect of unreasonably interfering with an individual's work performance or creating an intimidating, hostile, or offensive working environment.” (29 C.F.R. § 1604.11.)

Plaintiff

argues that Defendants present “an overly narrow reading of what may constitute sexual harassment under current California law.” (Opposition at p. 4.) Plaintiff contends that she “was treated adversely, denied reasonable accommodation, and wrongfully terminated based on pregnancy, childbirth, and her related post-partum disabilities/medical conditions — conduct that constitutes sexual harassment under FEHA.” (Id. at p. 5.)

However,

under FEHA, “‘harassment’ because of sex includes sexual harassment, gender harassment, and harassment based on pregnancy, childbirth, or related medical conditions.” (Gov. Code, § 12940, subd. (j)(4)(C).) The statute notably lists “sexual harassment” and “harassment based on pregnancy” as separate items.

The

Complaint alleges that Defendants violated FEHA by “denying Plaintiff equal terms, conditions, and/or privileges of employment enjoyed by other employees; refusing to accommodate Plaintiff; failing to provide Plaintiff with legally required rest breaks while pregnant; failing to remedy or prevent discrimination; denying baby bonding leave; wrongfully terminating Plaintiff’s employment in violation of public policy.” (Complaint ¶¶ 49, 62, 92.)

There

are no facts about “unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature.”

(See 29 C.F.R. § 1604.11.) Accordingly,

Plaintiff has not “alleg[ed] conduct constituting a sexual harassment dispute or sexual assault dispute,” and the EFAA does not prevent arbitration. (See 9 U.S.C.A. § 402(a).)

E. There Is No Procedural Unconscionability.

For

an arbitration agreement to be unenforceable as unconscionable, both procedural and substantive unconscionability must be present. (Armendariz, supra, 24 Cal.4th at p. 114.) “[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (Ibid.)

“The

relevant factors in assessing the level of procedural unconscionability are oppression and surprise.” (*Orcilla v. Big Sur, Inc.*

(2016) 244 Cal.App.4th 982, 997.) “The oppression

component arises from an inequality of bargaining power of the parties to the contract and an absence of real negotiation or a meaningful choice on the part of the weaker party.” (*Abramson v. Juniper Networks,*

Inc. (2004) 115 Cal.App.4th 638, 656.)

“The circumstances relevant to establishing oppression include, but are not

limited to (1) the amount of time the party is given to consider the proposed contract;

(2) the amount and type of pressure exerted on the party to sign the proposed contract;

(3) the length of the proposed contract and the length and complexity of the challenged

provision; (4) the education and experience of the party; and (5) whether the party’s

review of the proposed contract was aided by an attorney.” (*Grand Prospect Partners, L.P. v. Ross Dress*

for Less, Inc. (2015) 232 Cal.App.4th 1332, 1348, fn. omitted.) “The component of surprise arises when the challenged

terms are ‘hidden in a prolix printed form drafted by the party seeking to enforce

them.” (*Ibid.*) “The adhesive nature of the employment contract

requires [the court] to be ‘particularly attuned’ to [Plaintiff’s] claim of unconscionability

[citation], but [the court] do[es] not subject the contract to the same degree of

scrutiny as ‘[c]ontracts of adhesion that involve surprise or other sharp practices’

[citation].” (*Baltazar v. Forever 21,*

Inc. (2016) 62 Cal.4th 1237, 1245 (*Baltazar*).)

Plaintiff

argues that the arbitration agreement is procedurally unconscionable because it

is an oppressive contract of adhesion and “she was never given any indication of

the legal ramifications of anything she signed.” (*Opposition* at pp. 9-10.) Arbitration agreements that are “take it or leave

it” have some degree of procedural unconscionability. (*Ajamian v. CantorCO2e, L.P.* (2012) 203

Cal.App.4th 771, 796.) However, this Arbitration

Agreement is a stand-alone six-page document clearly titled “Mutual Agreement to

Arbitrate Claims.” It includes (in bold font)

instructions for opting out of the Waivers of Right To File Class, Collective, Representative

or Joint Actions provision. (*Arbitration*

Agreement at p. 4.) There is no language

stating that the Arbitration Agreement is mandatory or that Plaintiff’s employment

is contingent on her agreement to the terms.

Additionally, on the final page, above the signatures, the Arbitration Agreement

states: (1) “THE PARTIES ACKNOWLEDGE AND AGREE THAT EACH HAS READ THIS AGREEMENT

CAREFULLY AND UNDERSTAND THAT BY SIGNING IT, EACH IS WAIVING ALL RIGHTS TO A TRIAL

OR HEARING BEFORE A JUDGE OR JURY OF ANY AND ALL DISPUTES AND CLAIMS SUBJECT TO ARBITRATION UNDER THIS AGREEMENT"; and (2) "I ACKNOWLEDGE THAT I HAVE CAREFULLY READ THIS AGREEMENT, THAT I UNDERSTAND ITS TERMS, THAT ALL UNDERSTANDINGS AND AGREEMENTS BETWEEN THE COMPANY AND ME RELATING TO THE SUBJECTS COVERED IN THE AGREEMENT ARE CONTAINED IN THIS AGREEMENT, AND THAT I HAVE ENTERED INTO THIS AGREEMENT VOLUNTARILY AND NOT IN RELIANCE ON ANY PROMISES OR REPRESENTATIONS BY THE COMPANY OTHER THAN THOSE CONTAINED IN THIS AGREEMENT ITSELF.

I FURTHER ACKNOWLEDGE THAT I HAVE BEEN GIVEN THE OPPORTUNITY TO AND HAVE BEEN ADVISED TO DISCUSS THIS AGREEMENT WITH MY PRIVATE LEGAL COUNSEL OR REPRESENTATIVE OF MY CHOOSING AND HAVE AVAILED MYSELF OF THAT OPPORTUNITY TO THE EXTENT I WISH TO DO SO." (Arbitration Agreement at p. 6.)

Plaintiff

has not shown any procedural unconscionability.

F. There Is No Substantive Unconscionability.

Even

if the Arbitration Agreement was a contract of adhesion and there was slight procedural unconscionability, Plaintiff has not shown any substantive unconscionability.

"Substantive

unconscionability pertains to the fairness of an agreement's actual terms and to assessments of whether they are overly harsh or one-sided. [Citations.]

A contract term is not substantively unconscionable when it merely gives one side a greater benefit; rather, the term must be "so one-sided as to 'shock the conscience.'" [Citation.]" (Carmona v. Lincoln Millennium Car Wash, Inc. (2014) 226 Cal.App.4th 74, 85.)

Plaintiff

argues that "[r]equiring Plaintiff to exhaust Cheesecake's internal complaint procedures before submitting claims to arbitration gives Cheesecake an explicit 'free peek' at Plaintiff's claims." (Opposition at p.

12.) Unlike the agreement in Plaintiff's

cited case, this agreement has no requirement to exhaust all internal dispute resolution procedures. (Cf. Nyulassy v. Lockheed

Martin Corp. (2004) 120 Cal.App.4th 1267, 1282-1283.) Instead, the parties agree to arbitrate claims

"if either Party determines that the Company's internal procedures for handling claims . . . have not resulted in a mutually acceptable resolution of the dispute." (Arbitration Agreement at p. 1.)

Plaintiff

also argue that Defendants are “repeat players” with AAA, so “there is a severe risk . . . that if this matter is compelled to arbitration, the Arbitrator will have a strong interest in making biased rulings in favor of Defendants, including denial of additional and absolutely necessary discovery as well as the arbitration award itself, in order to continue receiving business from Defendants.” (Opposition at pp. 12-13.) This is pure speculation, and Plaintiff cites no authority for this being a ground for unconscionability.

In

sum, there is no substantive unconscionability, and the Arbitration Agreement should not be invalidated.

CONCLUSION

Defendants’

motion to compel arbitration is GRANTED.

The entire action is STAYED pending the conclusion of the arbitration.

A

Status Conference re: Arbitration is scheduled for July 30, 2027 at 8:30 a.m. in Department 506 at Stanley Mosk Courthouse.

Five court days before, the parties are to file a joint report stating the name of their retained arbitrator and the status of arbitration.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 28th day of July 2026

Hon. Thomas D. Long

Judge of the Superior

Court